
IN THE COURT OF APPEALS OF MISSISSIPPI
No. 2020-CP-01259-COA

MATTHEW OLIVER REARDON
Appellant

v.

STATE OF MISSISSIPPI
Appellee

On Appeal from the Circuit Court
of Lafayette County, Mississippi

BRIEF OF THE APPELLEE

LYNN FITCH
Attorney General of Mississippi

BARBARA BYRD
Special Assistant Attorney General
Mississippi Bar No. 104233
P.O. Box 220
Jackson, Mississippi 39205-0220
Telephone: (601) 359-4169
Email: Barbara.Byrd@ago.ms.gov

Counsel for Appellee

ORAL ARGUMENT NOT REQUESTED

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CERTIFICATE OF INTERESTED PERSONS

Under M.R.A.P. 28(a)(1), governmental parties need not furnish a certificate of interested persons.

LYNN FITCH
Attorney General of Mississippi

/s/ Barbara Byrd
BARBARA BYRD
Special Assistant Attorney General
Counsel for Appellee

TABLE OF CONTENTS

TABLE OF CONTENTS	ii
TABLE OF AUTHORITIES	iii
STATEMENT OF THE ISSUE	1
STATEMENT OF THE CASE	1
STANDARD OF REVIEW	2
SUMMARY OF THE ARGUMENT	2
ARGUMENT	3
CONCLUSION	6

TABLE OF AUTHORITIES

State Cases

<i>Corrothers v. State</i> , 148 So. 3d 278 (Miss. 2014)	3
<i>McComb v. State</i> , 135 So. 3d 928 (Miss. Ct. App. 2014).....	6
<i>Middlebrook v. State</i> , 964 So. 2d 638 (Miss. Ct. App. 2007)	5
<i>Reeves v. State</i> , 256 So. 3d 632 (Miss. Ct. App. 2018)	6
<i>Smith v. State</i> , 118 So. 3d 180 (Miss. Ct. App. 2013)	4
<i>Smith v. State</i> , 129 So. 3d 243 (Miss. Ct. App. 2013)	2, 4
<i>Worth v. State</i> , 223 So. 3d 844 (Miss. Ct. App. 2017)	6

STATEMENT OF THE ISSUE

May a party seeking post-conviction relief prevail when his motion fails to substantially show the denial of a state or federal right?

STATEMENT OF THE CASE

Appellant Matthew Reardon waived his right to an indictment and entered a petition to plead guilty by a bill of information to the crime of aggravated stalking. (CP 101, 103, 105). The circuit court accepted Reardon's guilty plea. (CP 160). In accord with his plea bargain, Reardon was sentenced to serve five years in the custody of the Mississippi Department of Corrections with credit for time served, and the rest of his sentence was suspended to be served on post-release supervision (PRS). (CP 119–20). As a special condition of his PRS, Reardon was banished from Lafayette County. (CP 120; 163).

About three years later, Reardon moved for post-conviction relief (PCR), asserting without argument or sufficient details that the State violated his First, Eighth, and Fourteenth Amendment constitutional rights when he entered his guilty plea and that he had involuntarily entered his plea based on a denial of his right to due process. (CP 8–9). The circuit court denied his PCR motion, finding that it plainly appeared

from the face of the motion and prior proceedings that Reardon had no right to relief and that his claims were contradicted by the transcript of the plea and sentencing hearings. (CP 18).

After the Order Denying Relief was entered, Reardon filed a Motion for Rehearing, a Motion for Recusal, and a Motion to Compel Evidence. (CP 19–20; 21; 27–28). All were denied. (CP 33). Reardon timely appeals. (CP 36).

STANDARD OF REVIEW

A PCR movant bears the burden of showing by a preponderance of the evidence that he is entitled to relief. *Smith v. State*, 129 So. 3d 243, 245 (Miss. Ct. App. 2013). On review from the denial of a PCR motion, this Court “review[s] the trial court’s findings of fact for clear error and its determinations of law de novo.” *Id.* The trial court’s denial of a PCR motion will be affirmed in every case in which the movant fails to substantially show that he is entitled to relief based on the denial of a state or federal right. *Id.*

SUMMARY OF THE ARGUMENT

The trial court did not err by denying Reardon’s PCR motion. Reardon failed to meet his burden of showing that any of his state or

federal rights were violated and that he had a right to post-conviction relief. The arguments that he raises for the first time on appeal are barred and should not be considered by this Court.

ARGUMENT

For the first time on appeal, Reardon argues that (1) his attorney rendered “malfeasant legal representation; (2) he was coerced to plead guilty through the imposition of an excessive bond; (3) he was denied due process due to a delayed initial appearance and the denial of his right to a preliminary hearing; and (4) he has exculpatory evidence that entitles him to relief. (Appellant’s Brief 6–15).¹ These are markedly different from the arguments he presented in the circuit court. There, he presented (with no argument) claims that the State violated his First, Eighth, and Fourteenth Amendment constitutional rights when he entered his guilty plea, and that he had involuntarily entered his plea based on a denial of his right to due process.² (CP 8–9).

¹ Reardon’s fifteen-page brief contains no page numbers. So the State will cite the actual page number of the document.

² After the trial court ruled on his PCR motion, Reardon filed a motion for rehearing and a motion for recusal. In his statement of the issues, Reardon lists the denial of the motion for recusal as an issue to be argued. (Appellant’s Brief 5). But that issue was not briefed and should not be addressed by this Court. *See Corrothers*

In his PCR motion, Reardon presented issues but included no argument in support of his claims. He does now, but, to the extent that Reardon tries to relitigate his originally-presented claims in an untimely attempt to meet his burden under the PCR Act, this Court should find that the new arguments are barred. *See Smith*, 129 So. 3d at 246 (noting that arguments not presented to the circuit court are procedurally barred from appellate review). Even so, Reardon's arguments are still insufficient to demonstrate that he is entitled to post-conviction relief.

As for the claims he presented to the circuit court, it correctly concluded that Reardon's PCR claims were unsupported and were contradicted by the record. (CP 18). The record shows that Reardon voluntarily pleaded guilty. (CP 158). He told the trial court that he was satisfied with his counsel's performance and that the decision to plead guilty was his own; he was not coerced. (CP 152; 158). And he admitted that he committed the crime for which he was charged. (CP 158). The issues rejected by the circuit court lack merit.

v. State, 148 So. 3d 278, 323 (Miss. 2014); *Smith v. State*, 118 So. 3d 180, 182 (Miss. Ct. App. 2013).

The issues he presents for the first time on appeal are barred and are also without merit. Reardon does not raise a claim of ineffective assistance of counsel. Instead, he argues that his attorney provided malfeasant legal representation when he coerced him to plead guilty by warning him that, if he did not, the State would “pile on” additional charges. (Appellant’s Brief 13). Reardon’s claim that he was coerced contradicts his testimony at his plea proceeding that he was not. (CP 158). Further, the offering of the complained-of advice was not coercive and did not amount to ineffective assistance of counsel.

This Court has held that counsel has a duty to fairly advise his client about the likely outcome of his case. *Middlebrook v. State*, 964 So. 2d 638, 640 (Miss. Ct. App. 2007). Further, “[i]f [an] attorney believes that it is in his client’s best interest to plead guilty, it is his duty to inform him of that fact.” *Id.* Here, counsel’s suggestion that the State planned to bring more charges against Reardon was not improper because it was true. (CP 161–63). This advice does not warrant any relief.

Neither do his claims regarding the delay or denial of his initial appearance or preliminary hearing, his claim that he was entitled to pre-plea bond relief, and his claim that he possesses exculpatory evidence. A

valid guilty plea waives pretrial bond issues. *McComb v. State*, 135 So. 3d 928, 932 (Miss. Ct. App. 2014). It also waives the right to an initial appearance and a preliminary hearing, *Reeves v. State*, 256 So. 3d 632, 635 (Miss. Ct. App. 2018), and it waives the right to present a defense including exculpatory evidence and to require the State to prove the elements of the offense beyond a reasonable doubt, *Worth v. State*, 223 So. 3d 844, 852 (Miss. Ct. App. 2017). So these arguments lack merit.

CONCLUSION

The issues presented by Reardon are barred and lack merit. For these reasons, the State of Mississippi requests that this Honorable Court affirm the denial of Reardon's PCR motion.

LYNN FITCH
Attorney General of Mississippi

BARBARA BYRD
Special Assistant Attorney General
Mississippi Bar No. 104233
P.O. Box 220
Jackson, Mississippi 39205-0220
Telephone: (601) 359-4169
Email: Barbara.Byrd@ago.ms.gov

Counsel for Appellee

CERTIFICATE OF SERVICE

I, Barbara Byrd, certify that I have electronically filed this document with the Clerk of the Court using the MEC system, which sent notification to all counsel of record, and mailed, via U.S. Mail, postage pre-paid to the following:

Honorable John Kelly Luther
Circuit Court Judge
102 N. Main Street, Ste. F
Ripley, MS 38663

Honorable Ben Creekmore
District Attorney
111 East Main Street
New Albany, MS 38652

Matthew Reardon
P.O. Box 1360
Bruce, MS 38915

THIS, the 5th day of January, 2022.

LYNN FITCH
Attorney General of Mississippi

/s/ Barbara Byrd

BARBARA BYRD
Special Assistant Attorney General
Counsel for Appellee